

**BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS**

STATE OF COLORADO

Case No. 2004-000721

STIPULATION AND FINAL AGENCY ORDER

**IN THE MATTER OF PROCEEDINGS REGARDING THE LICENSE TO PRACTICE
PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF JOHN E.
HARTLE, L.P.C., LICENSE NO. 965,**

Respondent.

**IT IS HEREBY STIPULATED by and between the State Board of Licensed
Professional Counselor Examiners (the "Board") and John E. Hartle, L.P.C., ("Respondent")
as follows:**

- 1. The Board has jurisdiction over the person of Respondent and the subject
matter of this Stipulation and Final Agency Order ("Order").**
- 2. Respondent was licensed to practice as a professional counselor in the State of
Colorado at all times relevant herein.**
- 3. This Order is a full and final resolution of case number 2004-000721. This
Order does not resolve any other cases, complaints, or matters, known or unknown to the
Board or Respondent, as of the effective date of this Order.**
- 4. On or about October 2003, the Board initiated an inquiry against Respondent
identified as case number 2004-000721. Respondent believes his care appropriate but
recognizes that the Board has concerns regarding his care and treatment of Patient BG.
Respondent enters into this Stipulation with the Board to resolve the pending complaint
against his license and to avoid the necessity of holding a formal disciplinary hearing.**
- 5. To resolve the inquiry against Respondent's license, Respondent agrees to
adhere to all terms and conditions set forth in this Stipulation.**

CLINICAL SUPERVISION

- 6. Respondent's license to practice professional counseling in the State of
Colorado is hereby placed on clinical supervision for 3 (three) years commencing from the
date this Order is fully executed or the date Respondent's clinical supervisor is approved,
whichever date is later. During the clinical supervisory period, Respondent shall be bound
by the terms and restrictions set forth in this Order. At the end of 2 years of clinical**

supervision the respondent may apply to the Board with the input from the clinical supervisor to terminate this agreement if all terms and conditions have been met.

7. The period of clinical supervision is tolled during any time that Respondent is not practicing in this state, and such period of clinical supervision shall resume at such time as Respondent resumes practicing in the State of Colorado in accordance with this Order.

8. Credit toward the period of clinical supervision will be given only for the period of time during which Respondent is practicing as a licensed professional counselor in Colorado, is being monitored by a clinical supervisor, and is in full compliance with all terms of this Order.

9. If, at the end of the clinical supervisory period, Respondent has adhered to all terms and conditions of this Order, Respondent may request termination of clinical supervision. Request for termination of clinical supervision must be made in writing to the Board, and Respondent is responsible for establishing, to the satisfaction of the Board, that he has satisfied all terms and conditions of clinical supervision.

CLINICAL SUPERVISOR

10. During the term of clinical supervision, Respondent's practice shall be monitored by a clinical supervisor. Within 30 days of the effective date of this Order, Respondent shall submit, in writing, three proposed clinical supervisors for the Board's approval. Respondent shall include a program-approved clinical supervisor application from each potential supervisor, with attached curriculum vita or resume. The clinical supervisor shall meet the following criteria:

a. The clinical supervisor shall be a licensed, certified, or listed, currently practicing mental health provider in the State of Colorado.

b. It is recommended that the clinical supervisor have a minimum of five years experience and has not been subject to professional discipline.

c. The clinical supervisor shall have no current or past financial or personal interest in Respondent or Respondent's practice. Former employees and business associates fall under this provision.

11. Respondent must have a clinical supervisor approved by the Board within two months after this Order is fully executed. If this requirement is not satisfied, Respondent must cease practice and agrees to suspension of his practice until a clinical supervisor is approved.

12. After the Board's written approval of the clinical supervisor, Respondent and the clinical supervisor shall enter into a written contract for monitoring. The clinical supervisor shall provide a copy of the written contract to the Board as a part of his/her first report to the Board. The contract must contain a provision stating that the clinical supervisor has received a copy of this Order, the complaint and responsive documents, any investigative report, and any prior practice evaluation; has read these documents; and understands the

duties and responsibilities s/he is undertaking as Respondent's clinical supervisor. The clinical supervisor shall ensure that a written notification is provided to each of Respondent's clients, informing the clients of the name, address, and telephone number of the clinical supervisor. This written notification may be provided in a mandatory disclosure statement.

13. The clinical supervisor shall conduct a practice evaluation during the first month of clinical supervision. The practice evaluation shall examine all aspects of Respondent's practice or proposed practice and his qualifications and ability to practice in accordance with generally accepted standards of practice and with skill and safety for clients, and determine whether he has the necessary qualifications, current ability, and competence to practice. The first clinical supervision report shall include the findings of the practice evaluation.

14. Should the Board determine from the clinical supervisor's evaluation that Respondent cannot practice any part of his practice with skill and safety for clients in accordance with generally accepted standards of practice or does not have the appropriate qualifications, ability or competence for practice, Respondent shall immediately cease any part of the practice that the Board determines, based on the evaluation, he is not qualified, competent, or safe to conduct. Based on the Board's findings and the evaluation, the Board will determine necessary actions that Respondent must take and conditions Respondent must meet so that Respondent can practice with skill and safety for clients in accordance with generally accepted standards of practice in any areas the Board finds Respondent is not qualified, competent, and safe to practice. Once Respondent satisfies the Board that he is qualified, competent, and safe to fully practice, Respondent may resume full practice.

15. The clinical supervision shall consist of individual, in-person (face-to-face) sessions that occur for a minimum of one hour for every 20 hours of client contact, but at least once a month. During the clinical supervision sessions, Respondent and his clinical supervisor must review and discuss each of Respondent's active cases at least once every month in order to allow the clinical supervisor to be able to determine whether Respondent is practicing professional counseling in accordance with generally accepted standards of practice and with skill and safety for his clients.

16. The clinical supervisor shall submit written reports to the Board on the fifth day of the month following the first full month of clinical supervision. All subsequent reports shall be submitted on the fifth day of each month for the first 12 reports. After the submission of the first 12 reports, unless otherwise ordered by the Board, the clinical supervisor shall submit his/her reports by the fifth day of every third month (i.e. on a quarterly basis) until the clinical supervision is completed.

17. If at any time the Board has questions or concerns regarding the clinical supervision, the clinical supervisor agrees to attend any Board meeting necessary to address the Board's concerns. The Board will give the clinical supervisor 30 days notice prior to requiring the clinical supervisor's attendance at the Board meeting.

18. If at any time the clinical supervisor believes Respondent is not in compliance with this Order, is unable to practice with skill and safety to his clients, or has committed a violation of the practice act or rules and regulations, the clinical supervisor shall immediately

notify the Board, in writing, and include the basis for this conclusion. A copy will be sent to Respondent. Upon submission of such a report, Respondent shall immediately cease the practice of professional counseling.

19. Respondent shall make every effort to reasonably ensure that all reports by the clinical supervisor are complete and timely submitted to the Board. If, in the Board's judgment, the clinical supervisor fails to perform the function specified by this Order, the Board may require that a new clinical supervisor assume the responsibilities herein. If for any reason the clinical supervisor ceases to perform the functions specified in this Order, Respondent shall submit, in writing, a new proposed clinical supervisor to the Board within 30 days.

20. Respondent or the clinical supervisor may terminate the monitoring relationship upon written notice to the other and to the Board not less than 60 days before the date of termination. The notice shall state the reason for the termination. Respondent shall immediately initiate efforts to obtain another Board-approved clinical supervisor, who shall conduct her/his monitoring and report to the Board in accordance with this Order.

CONTINUING EDUCATION

21. During the period of Clinical supervision, Respondent must successfully complete at least 10 (ten) hours each year of Board-approved professional continuing education courses in the areas of diagnostics, appropriate use of power, transference and counter-transference, consulting and referral, and operating outside the scope of practice. Respondent shall obtain Board approval of the courses prior to enrolling in each course. Upon completion of a course, the provider is to mail to the Board a certificate of completion.

ADDITIONAL AGREEMENT

22. Respondent agrees not to use The Intensive modality at any time during his future practice.

EARLY TERMINATION

23. After successful completion of no less than two (2) years of clinical supervision, and successful completion of twenty (20) hours of continuing education as described in paragraph 22, and upon written recommendation of the clinical supervisor, and further provided that Respondent is in full compliance with all terms and conditions of this Stipulation and Order, Respondent may request early termination of the clinical supervision period.

TERMS AND CONDITIONS

24. Respondent will strictly observe the prohibitions set forth in §12-43-222, C.R.S., and will ensure that he does not engage in any activities that are prohibited and that s/he practices in accordance with the generally accepted standards of practice.

25. Respondent shall not supervise with other mental health providers for the purpose of those persons providing psychotherapy, unless such supervision or consultation is monitored in accordance with this Order.

26. All expenses incurred or associated with the practice evaluation, clinical supervision, education, or any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Respondent and not the Board.

27. During the pendency of this Order, Respondent agrees that he will provide permission to and allow his clinical supervisor to provide records and information obtained in the normal course of clinical supervision to the Board if the clinical supervisor determines that Respondent is not practicing professional counseling in accordance with generally accepted standards of practice or has a condition that renders him unable to treat clients with skill and safety or that may endanger the health or safety of persons under his care. As part of this Order, Respondent explicitly waives his right to maintain confidentiality of records or information provided to the clinical supervisor in the normal course of clinical supervision if the clinical supervisor determines that he is not practicing professional counseling in accordance with generally accepted standards of practice or has a condition that renders him unable to treat clients with skill and safety or that may endanger the health or safety of persons under his care.

28. In the event Respondent relocates at any time during the clinical supervision period, Respondent shall notify the Board of the change of address within 30 days of the effective date of such change.

29. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

30. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to §12-43-224, C.R.S.

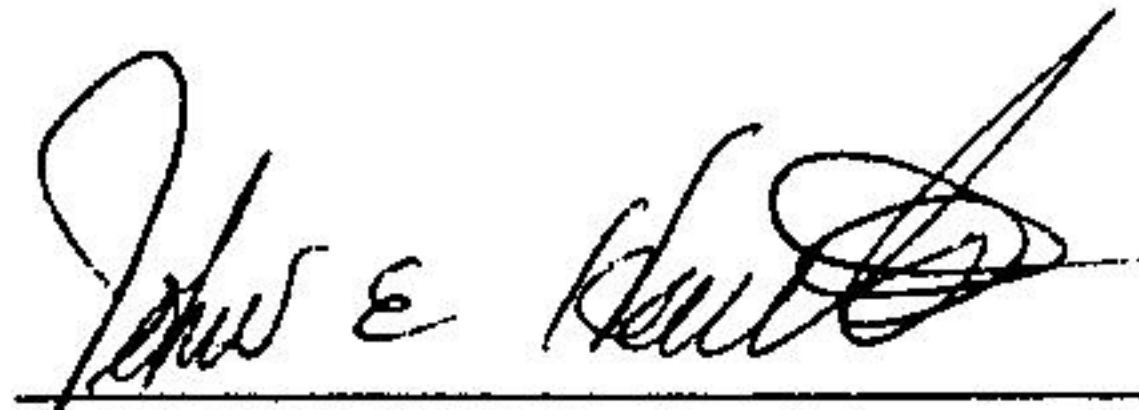
31. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

32. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

33. This Order shall become effective when accepted and signed on behalf of the Board.

34. This Order shall be a public record in the custody of the Board.

RESPONDENT



JOHN E. HARTLE, License No. 965

**COLORADO STATE BOARD OF
LICENSED PROFESSIONAL
COUNSELOR EXAMINERS**



GAYLE FIDLER
Program Director

Effective Date: This 23rd day of
July, 2007.

APPROVED AS TO FORM:

FOR THE RESPONDENT



GARY BLUM, ESQ. #3892
Silver & DeBoskey PC

Attorney for Respondent

1801 York St.
Denver, CO 80206
Telephone: (303) 399-3000
FAX: (303) 399-2650
E-mail: blumg@s-d.com

FOR THE BOARD



ILENE WOLF MOORE, #28898
Assistant Attorney General
Business and Licensing Section

Attorneys for State Board of Licensed Professional
Counselor Examiners

1525 Sherman Street, 5th Floor
Denver, CO 80203
Telephone: (303) 866-5275
FAX: (303) 866-5395
E-mail: ilene.wolfmoore@state.co.us

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